

IN THE CIRCUIT COURT, FOURTH
JUDICIAL CIRCUIT, IN AND FOR
DUVAL COUNTY, FLORIDA

CASE NO.: 2024-CA-000160

HARLAN GRIFFIN,
an individual,

Plaintiff,

vs.

ERNEST FRANKLIN WILLIAMS,
an individual, and
XYLEM, INC. d/b/a XYLEM TREE EXPERTS, INC.,
a Foreign Profit Corporation,

Defendants.

_____ /

SECOND AMENDED COMPLAINT

COMES NOW, Plaintiff HARLAN GRIFFIN by and through the undersigned counsel,
hereby sues Defendants, ERNEST FRANKLIN WILLIAMS and XYLEM, INC. d/b/a XYLEM
TREE EXPERTS, INC., and alleges:

1. This is an action for damages in excess of fifty-thousand dollars (\$50,000.00), exclusive of attorneys' fees, interest, and costs.
2. The collision, which gives rise to this Complaint, occurred on or about September 26, 2022, in Jacksonville, Duval County, Florida.
3. At all times material hereto, Defendant XYLEM, INC. d/b/a XYLEM TREE EXPERTS, INC. was and remains a Foreign Profit Corporation:
 - a. doing business, including the solicitation and provider of services, within the State of Florida, and specifically in Jacksonville, Duval County, Florida; and/or
 - b. which maintained an office, an agent, and/or a representative in Jacksonville, Duval County, Florida.

4. At all times material hereto, Defendant ERNEST FRANKLIN WILLIAMS operated and maintained a 2018 Freight motor vehicle, owned by Defendant XYLEM, INC. d/b/a XYLEM TREE EXPERTS, INC, at or near the intersection Interstate 10 W and State Road 111 in Jacksonville, Duval County, Florida.

COUNT I: NEGLIGENCE
(HARLAN GRIFFIN v. ERNEST FRANKLIN WILLIAMS)

5. Plaintiff HARLAN GRIFFIN re-alleges each and every allegation contained in paragraphs one (1) through four (4) as if fully set forth herein and further alleges:

6. Plaintiff HARLAN GRIFFIN is entitled to relief against Defendant ERNEST FRANKLIN WILLIAMS upon the following facts:

- a. On or about September 26, 2022, Plaintiff was lawfully operating a motor vehicle at or near the intersection of Interstate 10 W and State Road 111 in Jacksonville, Duval County, Florida.
 - b. At approximately the same place and time, Defendant ERNEST FRANKLIN WILLIAMS negligently operated and/or negligently maintained the motor vehicle described in paragraph four (4), such that he struck the motor vehicle occupied by Plaintiff.
 - c. Defendant ERNEST FRANKLIN WILLIAMS owed a duty to Plaintiff to operate the motor vehicle he was driving in a careful and prudent manner, and he breached that duty of care when he failed to maintain the motor vehicle so as to avoid colliding with the motor vehicle occupied by Plaintiff.
7. As a direct and proximate result of Defendant's negligence, Plaintiff suffered bodily injury including a permanent injury to the body as a whole, pain and suffering of both a physical and mental nature, disability, physical impairment, disfigurement, mental anguish, inconvenience, loss

of capacity for the enjoyment of life, aggravation of an existing condition, activation of an existing condition, expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money and loss of ability to lead and enjoy a normal life. The losses are either permanent or continuing and Plaintiff will suffer the losses in the future.

WHEREFORE, Plaintiff HARLAN GRIFFIN demands judgment for damages and costs against Defendant ERNEST FRANKLIN WILLIAMS, and a trial by jury of all issues herein.

COUNT II: DANGEROUS INSTRUMENTALITY
(HARLAN GRIFFIN v. XYLEM, INC. d/b/a XYLEM TREE EXPERTS, INC.)

8. Plaintiff HARLAN GRIFFIN re-alleges each and every allegation contained in paragraphs one (1) through seven (7) as if fully set forth herein and further alleges:

9. At all times material hereto, Defendant XYLEM, INC. d/b/a XYLEM TREE EXPERTS, INC. voluntarily entrusted Defendant ERNEST FRANKLIN WILLIAMS with operating the motor vehicle described in paragraph four (4).

10. Defendant XYLEM, INC. d/b/a XYLEM TREE EXPERTS, INC. is vicariously liable for Defendant ERNEST FRANKLIN WILLIAMS's negligent driving actions pursuant to the *dangerous instrumentality* doctrine.

11. As a direct and proximate result of the foregoing negligence, Plaintiff suffered bodily injury including a permanent injury to the body as a whole, pain and suffering of both a physical and mental nature, disability, physical impairment, disfigurement, mental anguish, inconvenience, loss of capacity for the enjoyment of life, aggravation of an existing condition, activation of an existing condition, expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money and loss of ability to lead and enjoy a normal life. The losses are either permanent or continuing and Plaintiff will suffer the losses in the future.

WHEREFORE, Plaintiff HARLAN GRIFFIN demands judgment for damages and costs against Defendant XYLEM, INC. d/b/a XYLEM TREE EXPERTS, INC., and a trial by jury of all issues herein.

COUNT III: RESPONDEAT SUPERIOR
(HARLAN GRIFFIN v. XYLEM, INC. d/b/a XYLEM TREE EXPERTS, INC.)

12. Plaintiff HARLAN GRIFFIN re-alleges each and every allegation contained in paragraphs one (1) through seven (7) as if fully set forth herein and further alleges:

13. At all times material hereto, Defendant ERNEST FRANKLIN WILLIAMS was an employee, agent, apparent agent and/or servant contracted to perform services for Defendant XYLEM, INC. d/b/a XYLEM TREE EXPERTS, INC., and under Defendant XYLEM, INC. d/b/a XYLEM TREE EXPERTS, INC.'s operating authority.

14. At all times material hereto, Defendant ERNEST FRANKLIN WILLIAMS was acting within the course and scope of said employment, agency, apparent agency, and/or service and subject to Defendant XYLEM, INC. d/b/a XYLEM TREE EXPERTS, INC.'s control or right to control, such that Defendant XYLEM, INC. d/b/a XYLEM TREE EXPERTS, INC. should be considered his actual and statutory employer, agent, apparent agent and/or servant and therefore vicariously liable for Defendant ERNEST FRANKLIN WILLIAMS' negligence.

15. Defendant XYLEM, INC. d/b/a XYLEM TREE EXPERTS, INC. is liable for the negligent actions and omissions of Defendant ERNEST FRANKLIN WILLIAMS, and resulting damages pursuant to the *respondeat superior* doctrine.

16. As a direct and proximate result of the foregoing negligence, Plaintiff suffered bodily injury including a permanent injury to the body as a whole, pain and suffering of both a physical and mental nature, disability, physical impairment, disfigurement, mental anguish, inconvenience, loss of capacity for the enjoyment of life, aggravation of an existing condition, activation of an

existing condition, expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money and loss of ability to lead and enjoy a normal life. The losses are either permanent or continuing and Plaintiff will suffer the losses in the future.

WHEREFORE, Plaintiff HARLAN GRIFFIN demands judgment for damages and costs against Defendant XYLEM, INC. d/b/a XYLEM TREE EXPERTS, INC., and a trial by jury of all issues herein.

DEMAND FOR JURY TRIAL

Plaintiff demands trial by jury of all issues so triable.

Dated this 3rd day of December, 2024.

MORGAN & MORGAN

/s/ Nicolas Iannucci

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